

Men Must Pay for Evil They Do...

Tom Barrett

The desperate campaign to prevent the restoration of capital punishment is producing some of the most inflammatory and emotional rhetoric heard in many years.

On the editorial pages of *The Journal*, MPs who support the death penalty have been condemned as unprincipled opportunists, ready to string up prisoners in order to pander to public bloodlust, and the views of the vast majority of ordinary citizens who stubbornly maintain that our very worst criminals should be executed, have been reportedly branded as ignorant, uncivilized or worse.

Attacks of this nature do no credit to the abolitionist cause or to the people who make them, but we really shouldn't be surprised to read them. The mud being slung is a little thicker, the pomposity a tad more overbearing perhaps, but the attempt to shame and intimidate those who believe justice demands the return of the death penalty is an all-too familiar feature of this "debate," and one that demands a response.

Like most Canadians, I prefer to live in a community that is angry at the Clifford Olsons and Bill Tames, rather than one anxious to extend unwarranted sympathy to men who have committed the most heinous crimes. There is nothing sick or shameful in such anger, or in the belief that death is the only fit penalty for the crimes such men have committed. The fact that most citizens still insist on the ultimate penalty for ultimate crimes is a sign of the continuing moral health of our community, not of a wanton desire for blood.

Their anger is not a selfish, narrow passion, but a reflection of the fundamental human belief that men must pay for the evil they do; that those who commit violent acts against any member of our community do violence to us all, and, in the case of men like Olson or Charles Manson, any penalty less than death is inadequate. The continued existence of men such as Manson, who now amuses himself by selling his obnoxious ravings to newspapers, is an insult to all law-abiding citizens. As former University of Toronto professor Walter Berns has written, execution is a terrible penalty, but there are terrible crimes. By not punishing the most grave offences harshly, we send the message that we do not consider them grave.

Obviously the anger we feel towards violent criminals must be properly tamed in a court of law, which, far from the heat of passion, ultimately expresses it as the denunciation of society. Yet we must never forget the fundamental connection between anger and justice. A community which deals with criminal activity on a mere calculation of mutual self-interest, wholly bare of moral indignation, is an impoverished community indeed, and not the kind most of us would choose to live in.

Yet that is the supposedly compassionate society some critics of capital punishment advocate—one in which moral indignation is discarded as irrational and compassion is blindly extended to all, regardless of the offences committed or aggravating circumstances.

But it is those who cloak their own moral uncertainty in pious sentiments about unlimited compassion and the sacredness of all life whose judgments deserve examination. When the lives of unspeakably vile men such as Manson or Adolf Hitler are said to be as sacred as that of heroic men like Gandhi or Martin Luther King, you can be sure the word has lost all meaning. This is not evidence of a generous vision, but of a bankruptcy of vision. The claim that no crime, however heinous, warrants execution, that absolutely nothing is worth dying for, exalts mere

existence over every other moral value. This is not the compassionate, progressive stand it masquerades as, but a poverty of values.

Fortunately, the vast majority of Canadian citizens do not share this lack of conviction. They continue to believe that we are right and criminals are wrong, that both compassion and punishment, sometimes very harsh punishment, have a place in our criminal justice system, and they are determined to see that our worst criminals are paid back for their actions and receive the penalty that justice demands.